

Court No. - 39

Case :- WRIT - C No. - 2363 of 2021

Petitioner :- Uday Pal Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Ashutosh Tiwari

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, Sri Mukesh Kumar Singh, learned counsel appearing on behalf of respondent no. 2 and learned Standing Counsel appearing on behalf of respondent no. 1.

This writ petition has been filed seeking following reliefs:-

"i) Issue a writ, order or direction in the nature of certiorari to quash the notice dated 20.12.2017 issued by the Executive Engineer (Pravartan Dal) Electricity Distribution Khand Bisauli (Budaun) Uttar Pradesh Power Corporation Limited (respondent no. 2) for recovery of amount of Rs. 46,109/- contained in (Annexure No. 6) of the writ petition.

ii) issue a writ, order or direction in the nature of mandamus commanding and directing the respondents Authority not to use any coercive method against the petitioner in pursuance of the notice dated 20.12.2017 issued by the Executive Engineer (Pravartan Dal) Electricity Distribution Khand Bisauli (Budaun) Uttar Pradesh Power Corporation Limited. (respondent no. 2) for recovery of amount of Rs. 46,109/-."

Learned counsel appearing for respondent no. 2 submits that since the petitioner is not disputing the demand raised toward electricity bills and is ready to pay the same, the petitioner may approach under Clause 6.14 of the U.P. Electricity Supply Code, 2005 before respondent no. 2, which shall be considered by the respondent-authority, in accordance with law.

Without entering into the merits of the case, this writ petition is ***disposed of*** directing the petitioner to move a fresh representation before respondent no.2 under Clause 6.14 of the U.P. Electricity Supply Code, 2005 within two weeks' from today ventilating his grievances and in case, such representation is moved, the same shall be considered and decided by respondent no.2 who shall pass an appropriate, reasoned and speaking order affording due opportunity of hearing to the petitioner, as expeditiously as possible, preferably within a period of

four weeks' from the date of receipt of a copy of this order.

For a period of six weeks or till any final decision is taken on the representation of the petitioner, whichever is earlier, no coercive action shall be taken against him.

Order Date :- 28.1.2021

Saurabh